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Data Processing Addendum

Version
2.0 (Current version)
Of Top Agreement last created on Mar 29, 2024

Preview as customer/vendor

Read and Sign changes

This Data Processing Addendum ("DPA") is entered into by and between Functional Software, Inc. d/b/a Sentry ("Sentry", "Sentry", "we" or "us") and the party that electronically accepts or otherwise agrees or opts in to this DPA ("Customer", "you" or "Your"). This DPA is effective as of the date electronically agreed to/accepted by you.

You have entered into one or more agreements with us (each, as amended from time to time, the "Agreement") governing your use of the Sentry service and related hosting, application monitoring, error tracking, and software test coverage reporting services (collectively, the "Services"). Pursuant to and Where Applicable in the Agreement, Sentry (or "We"), DPA and Customer (or "You") agree that the parties' rights and responsibilities with respect to the processing and security of Personal Data (defined below) under the Agreement, or to the extent applicable, DPA, in case (specific or not) are governed by (specific) laws of Customer, you represent that you are an employee, consultant or agent of Customer and that you have the authority to bind Customer to this DPA.

Any capitalized terms not defined in this DPA shall have the meanings set forth in the Agreement.

1. Definitions.

The following definitions apply to this DPA:

"GDPR" means the General Data Protection Regulation (EU) as amended by the California Privacy Rights Act, and any binding regulations promulgated thereunder.

"Controller" means the natural or legal person, public authority, agency or other body which, alone or jointly, determines the purposes and means of the processing of Personal Data.

"Customer Data" means data you submit to, store on or send to us via the Service.

"Data Incident" means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Personal Data on systems that are managed or otherwise controlled by Sentry. Data Incidents will not include unsuccessful attempts or activities that do not compromise the security of Personal Data, including, without limitation, pings and port scans, and other broadcast network attacks on firewall or networked systems or unsuccessful login attempts.

"Data Privacy Framework" means (as applicable) the EU-U.S. Data Privacy Framework, the Swiss-U.S. Data Privacy Framework and the UK Extension to the EU-U.S. Data Privacy Framework, as administered by the U.S. Department of Commerce.

"Data Privacy Framework Principles" means the Principles and Supplemental Principles of the relevant Data Privacy Framework, as may be amended, supplemented or replaced.

"Data subject" means the identified or identifiable natural person to whom Personal Data relates.

"Europe" means, for the purposes of this DPA, the member states of the European Economic Area, Switzerland and the United Kingdom.

"European Data Protection Legislation" means the data protection and privacy laws applicable in Europe, including (where applicable) the GDPR, the Swiss Federal Data Protection Act including as applicable the GDPR, EU Directive 2002/58/EC concerning the processing of Personal Data and the protection of privacy in the electronic communications sector and all laws implementing or supplementing the GDPR, EU Directive 95/46/EC and, from 25 May 2018, the GDPR, and in each case, as may be amended, supplemented or replaced from time to time.

"GDPR" means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation).

"Notification Email Address" means the email address that you designate in relevant notifications when you create an account to use the Service. You agree that you are solely responsible for ensuring that the Notification Email Address is current and valid at all times.

"Personal Data" means information about an identified or identifiable natural person or which otherwise constitutes "personal data", "personal information", "personally identifiable information" or similar terms as defined in Privacy Laws that is contained within Customer Data.

"Privacy Laws" means (i) European Data Protection Legislation and (ii) U.S. Data Protection Legislation.

"processing" (and "process") means any operation or set of operations that is performed on Personal Data or on sets of Personal Data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

"Processor" means a natural or legal person, public authority, agency or other body which processes Personal Data on behalf of the Controller.

"Standard Contractual Clauses" or "SCCs" means the standard contractual clauses as approved by the European Commission pursuant to the decision 2021/914/EU of 4 June 2021.

"Supervisory Authority" means any court that we or you process Customer Data in order to provide parts of the Service and/or related technical support, for the avoidance of doubt, the Irish Data Protection Commission, the Swiss Federal Data Protection and Information Commissioner.

"Term" means the term of the Agreement.

"UK Addendum" means the International Data Transfer Addendum (version B1.0) issued by the Information Commissioner's Office under s.119(A) of the Data Protection Act 2018, as may be amended, superseded or replaced from time to time.

"U.S. Data Protection Legislation" means the data protection and privacy laws and regulations enacted in the United States and applicable to the Personal Data in question, including (where applicable) the CCPA, as may be amended, supplemented or replaced from time to time.

2. Data Processing.

2.1

Roles and Regulatory Compliance. Authorization.

2.1.1. Scope of DPA. This DPA applies where and only to the extent Sentry processes Personal Data as a Processor for the purposes of Privacy Laws.

2.1.2. Roles and Responsibilities. The parties acknowledge and agree that (i) Sentry is a Processor of that Personal Data, (ii) Customer is an Controller of the Personal Data, (iii) each party will comply with the obligations applicable to it under Privacy Laws with respect to the processing of Personal Data, and (iv) each of us will specify in the Agreement and Data Protection Laws with respect to the processing of Personal Data.

2.1.3. Authorization by Third Party Controller. If you are a Processor of Personal Data acting on behalf of a third party Controller, then you represent to us that such Controller and actions with respect to that Personal Data, including your appointment of Sentry as another Processor, have been authorized by the relevant Controller. You agree and serve as our sole point of contact and where we would otherwise be required to provide notices, information or assistance to Controllers under this DPA, such notices, information, assistance or cooperation is to be exclusively given to you. We may deal with third party Controllers, we may provide such information, assistance or cooperation to or work such authorization from you.

2.2

Customer responsibilities.

2.2.1. Customer Authorizations. Sentry shall process Personal Data in accordance with Customer's documented instructions in accordance with 2.2.2 and 2.2.3 as part of (i) hosting authorizes and contract as to provide Personal Data; (ii) provide the Service and related technical support; (iii) as otherwise permitted or required by your use of the Service or your requests for technical support; (iv) as otherwise permitted or required by the Agreement; including this DPA; and (v) as further documented in any other written instructions given by Customer from time to time in connection with the Agreement. Sentry has no other purpose, unless otherwise specified in the applicable terms or regulations. The parties agree that the Agreement (including this DPA), and your use of the Service in accordance with the Agreement, are Customer's complete and final instructions to us for the processing of Personal Data. In any instance where applicable law requires a Processor to take any action with respect to Personal Data outside of your instructions, we will comply with this instruction as soon as reasonable practicable, but (if an events in accordance with applicable law.

2.3

Sentry Processing of Personal Data.

When the Parties agree, we will delete any Personal Data in our possession or control. This requirement will not apply to the extent that we are required by applicable law to retain some or all of the Personal Data, to which extent we will isolate and protect the Personal Data from further processing and destroy the remaining Personal Data in accordance with deletion practices, except to the extent required by law. You acknowledge that you will be responsible for exporting, before the Term expires, any Personal Data you want to retain after the Term expires.

3. Data Security.

3.1

Security Measures.

We will implement and maintain appropriate technical and organizational measures to protect Personal Data against Data Incidents and to preserve the security and confidentiality of Personal Data, as described in Schedule 2 (Collectively, the "Security Measures"). Subject to the Agreement, we may modify or supplement the Security Measures from time to time, provided that such changes and/or updates will not degrade the security of your Personal Data, unless Customer acknowledges that Security Measures are subject to technical progress and development and that we may provide new capabilities or modify the Security Measures from time to time, provided that such modifications or updates do not result in the degradation of the overall security of the Service.

3.2

Data Incidents.

Upon becoming aware of a Data Incident, we will notify you promptly and without undue delay, and will take reasonable steps to minimize harm and secure Personal Data. Notifications that we send you pursuant to this Section 3.2 will be sent to Your Notification Email Address or, at our discretion, by other direct communication (for example, by phone). You acknowledge that you are solely responsible for ensuring that Notification Email Addresses are current, valid, and accurate. You further acknowledge that you are solely responsible for complying with laws applicable to your business and for fulfilling any third party notification obligations related to any Data Incidents. Our notification of or response to a Data Incident under this Section will not constitute an acknowledgement of fault or liability with respect to the Data Incident.

3.3

Your Security Responsibilities.

You agree that, without prejudice to our obligations under Sections 3.1 or 3.2 above, you are solely responsible for your use of the Service, including securing your account, your use of the Service in ways or ways of security appropriate to the risk in relation to Customer Data, securing any account authentication credentials, systems and devices you use to access the Service, and backing up Customer Data. You understand and agree that we have no obligation to protect Customer Data that you elect to store or transfer outside of our and our Subprocessors' (e.g., Amazon Web Services) secure environment. You are solely responsible for evaluating whether the security and commitments under this Section 3 meet your needs, including with respect to your compliance with all your security obligations under Privacy Laws, as applicable.

3.4

Audits.

3.4.1. Audit Reports. You acknowledge that Sentry is regularly audited against various information security standards by independent third party auditors and internal auditors, respectively. Upon request, we shall supply (on a confidential basis) a summary copy of our audit reports, so that you can verify our compliance with the audit standards against which it has been assessed, and this DPA. Further, we will provide written responses (on a confidential basis) to all reasonable requests for information necessary to confirm our compliance with this DPA, provided that you will not exercise this right more than once per calendar year.

3.4.2. Independent Auditor. While it is the parties' intention to rely solely on the Sentry's provision of the audit reports and written responses in lieu of any on-site audits, where an internationally recognized independent auditor that you and we jointly select (subject to a confidentiality agreement) or other obligations under the DPA, You must send any requests for audits under this Section 3.4.2 by hyperlinked or otherwise up receipt of your request, the parties will discuss and agree in advance on the reasonable date(s), security, safety, and other parameters for such audit, and, if applicable to the audit. You will be responsible for any fees charged by any auditor you select to run such audit. We agree not to exercise our audit rights under this Section 3.4 more than once in any Notice (10) calendar month period, except if and when required by a competent data protection authority, or (2) an audit is necessary due to a Data Incident. You shall promptly notify us with information regarding any non-compliance discovered during the course of an audit. Nothing in this Section 3.4 shall be deemed to restrict our obligations under Section 3.3 above.

3. Data Subject Rights. Data Export.

3.1

Access. Rectification. Restricted Processing. Portability.

You acknowledge that the Service may, depending on the functionality of the Service, enable you to: (i) access the Customer Data; (ii) rectify inaccurate Customer Data; (iii) restrict the processing of Customer Data; (iv) delete Customer Data; and (v) export Customer Data.

3.2

Cooperation. Data Subjects' Rights.

To the extent that you cannot access the relevant Personal Data within the Service, we will provide you, at your expense, with all reasonable and timely assistance to enable you to respond to: (i) requests from data subjects who wish to exercise any of their rights under applicable Privacy Laws in respect of that Personal Data; and (ii) any complaint received from a data subject, government authority or other third party in connection with the processing of the Customer Data. In the event that any such request, correspondence, enquiry or complaint is made directly to us, we will promptly inform you of it, and provide you with as much detail as reasonably possible.

4. Data Transfers.

4.1

Data Storage and Processing Facilities.

You agree that we may, subject to Section 4.3 and 4 below and process Customer Data in the United States and any other country in which we or our Subprocessors maintain data processing operations. Sentry shall ensure that such transfers are made in compliance with applicable Privacy Laws and this DPA.

4.2

Transfers of Data out of Europe.

If the storage and processing of Personal Data as described in Section 4 involves a transfer of Personal Data that is subject to European Data Protection Legislation (European Economic Area) (Sentry is certified under the Data Privacy Framework, Sentry will comply with Schedule 3 (Cross-Border Transfer Mechanisms).

7. Subprocessors.

7.1

Consent to Engagement.

You authorize us to engage third parties as Subprocessors. Whenever we engage a Subprocessor, we will enter into a contract with that Subprocessor which imposes data protection terms that require the Subprocessor to protect Personal Data to an equivalent standard required under this DPA, and we will remain responsible for the Subprocessor's compliance with the obligations of this DPA and for any acts or omissions of the Subprocessor that cause us to breach any of our obligations under this DPA.

7.2

List of Subprocessors.

A list of our current Subprocessors is available at https://sentry.io/legal/subprocessors/, or such other website as Sentry may designate ("Subprocessor Page"). We may update the Subprocessor Page from time to time to reflect changes to our Subprocessors in accordance with this Section 7. If you subscribe to notice to you via email or other means specified on the Subprocessor Page, Sentry, this period, you will have the opportunity to object as described in Section 7.3 below.

7.3

Objections. Data Rentals.

You have the right to object to the appointment or replacement of a Subprocessor prior to its appointment or replacement, provided such objection is based on reasonable data not in control compliance with the requirements set forth in this DPA (and, as "Objection") if we do not remedy or provide a reasonable workaround to your Objection within a reasonable time, you may, as your sole remedy and our sole liability for your Objection, terminate the Agreement and cancel the Service, and without further liability to either party.

7.4

Removal of Subprocessor appointments.

You agree that by complying with this Section 7, we fulfill our obligations under Clause 9(a) and (b) of the Standard Contractual Clauses. You further acknowledge that for the purposes of Clause 9(a) of the Standard Contractual Clauses, we may be transferred from Processing Subprocessors appointed by you (to the extent you have Controlled) are to contractually restrict our relationship, for clarification, we shall not be liable to you for any Subprocessor appointed by us, or any other Subprocessor appointed by us, and, in turn, we will provide (upon request and subject to confidentiality laws) information as reasonably can in connection with such Subprocessor appointment.

8. Data Protection Impact Assessment.

We will provide you with reasonable and timely assistance as you may require in order to conduct a data protection impact or similar risk assessment relating to your use of the Service and, if required by Privacy Laws, consult with the relevant government authority.

9. Jurisdiction Specific Terms.

The terms specified in Schedule 4 with respect to the listed jurisdictions will apply in addition to the terms of this DPA.

10. Miscellaneous.

With the exception of the third party beneficiary rights granted/given applicable to Data Subjects and relevant Supervisory Authorities under the Standard Contractual Clauses (if this Section) or explicitly granted herein, nothing in this DPA shall confer any benefits or or rights any of the provisions of the Agreement, which otherwise remains in full force and effect. Specifically, nothing in this DPA will affect any of the terms of the Agreement relating to Sentry's limitations of liability which will remain in full force and effect. Notwithstanding anything to the contrary in the Agreement, Sentry's aggregate liability under or in connection with this DPA (including, without limitation, Standard Contractual Clauses, if applicable) shall be subject to the limitations of liability set forth in the Agreement. If any provision or part of a provision in this DPA is found to be illegal, invalid or unenforceable, the remaining part of the provision will be deemed to have been amended so as to cause it to be legal, valid and enforceable.

11. Change in Privacy Laws.

Notwithstanding anything to the contrary in the Agreement (including this DPA), in the event of a change in Privacy Laws or a determination or order by a government authority or competent court affecting DPA or the lawfulness of processing activities under this DPA, we reserve the right to make any amendments to this DPA as are reasonably necessary to ensure continued compliance with Privacy Laws in connection with such orders.

Schedule 1

Unless otherwise specified below, this schedule applies to both the Service (further described at https://sentry.io (the "Sentry Service") and https://bitbucket.org/site (the "Bitbucket Service").

List of Parties

Data exporter(s):

Name: Customer (as defined in the DPA)

Address: Customer's address as provided by Customer in the Service

Contact person's name, position and contact details: Customer's contact details as provided by Customer in the Service

Role (controller/processor): Controller/processor

Data importer(s):

Name: Functional Software, Inc. d/b/a Sentry

Address: 45 Fremont Street, 8th Floor, San Francisco, CA 94105

Contact person's name, position and contact details: Virginia Bodenkamp, General Counsel, legal@sentry.io

Role (controller/processor): Processor

Data Processing Description

Subject Matter: Sentry's provision of the Service to Customer, and related technical support.

Purpose of the Processing: Sentry will process personal data (submitted by, stored on or sent via the Service for the purpose of providing the Service and related technical support in accordance with this DPA.

Sentry's Service

Categories of Data Subjects: Data subjects who interact with the software, system or application that Customer has chosen to monitor using the Service, which may include Customer's employees and contractors, as determined by Customer in the configuration of the Service.

Categories of Personal Data: Personal data that is submitted to the Service by Customer, which may include IP address, and/or Customer has integrated with the Service, which may include Customer's employees and contractors.

Frequency of Personal Data: Continuous basis depending on the frequency of data inputs provided by Customer to the Service (subject to the code repository) and code repository(s) from the code repository that Customer has integrated with the Service.

Sensitive Data: Customer determines and controls the personal data transferred to Sentry and is solely responsible for knowing the legality of the categories of data it may choose to transfer to Sentry. The DPA includes an express prohibition on the transfer of special categories of personal data to Sentry.

Frequency of the Transfer: Continuous

Nature of the Processing: Sentry will perform the following basic processing activities: processing to provide the Service in accordance with the Agreement; processing to perform any steps necessary for the performance of the Agreement; and processing to comply with other reasonable instructions provided by Customer (e.g. via email) that are consistent with the terms of the Agreement.

Period for which the personal data will be retained: Throughout the Term of the Agreement, unless Customer deletes data from Sentry and deletes of Personal Data by Sentry in accordance with the Agreement.

Bitbucket Service

Categories of Data Subjects: Sentry's Bitbucket Service, as applicable to each of the Service further described at https://bitbucket.org (the "Sentry Service") and https://bitbucket.org/site (the "Bitbucket Service").

Sentry Service

Sentry's Bitbucket Service: The Sentry Service includes the technical and organizational measures set forth below and in the current version of the Sentry Service Security Policy available at https://sentry.io/security/.

Technical and Organizational Measures	Relevant Section(s) of Sentry Service Security Policy
Measures of pseudonymization and encryption of personal data	• Data Flow – data flow diagrams • Scanner • Data Flow – Data through Sentry • Encryption • Data Security and Privacy – Data Encryption
Measures of ensuring confidentiality, integrity, availability and resilience of processing systems and services	• Data Security and Privacy – Data Encryption • Data Flow – Data through Sentry • Data Flow – Data Storage • Data Flow – Data Processing • Data Flow – Data Ingestion • Data Flow – Data Retention • Data Flow – Data Deletion • Data Flow – Data Access • Data Security and Privacy – Data Integrity • Data Security and Privacy – Data Availability • Data Security and Privacy – Data Resilience • Data Security and Privacy – Data Access Control • Data Security and Privacy – Data Authentication • Data Security and Privacy – Data Authorization • Data Security and Privacy – Data Integrity • Data Security and Privacy – Data Availability • Data Security and Privacy – Data Resilience • Data Security and Privacy – Data Access Control • Data Security and Privacy – Data Authentication • Data Security and Privacy – Data Authorization
Measures of regularly testing, assessing and evaluating the effectiveness of technical and organizational measures in order to ensure the security of the processing	• Data Security and Privacy – Data Integrity • Data Security and Privacy – Data Availability • Data Security and Privacy – Data Resilience • Data Security and Privacy – Data Access Control • Data Security and Privacy – Data Authentication • Data Security and Privacy – Data Authorization •

Measures for ensuring ongoing confidentiality, integrity, availability and resilience of processing systems and services	• Infrastructure and Network Security - Physical Access Control • Infrastructure and Network Security - Logical Access Control • Application Security - Multi-factor Authentication • Application Security - Single Sign-On • Application Security - SAML 2.0 • Application Security - REST API Authentication (API Keys) • Application Security - Audit Controls
Measures for ensuring the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident	• Infrastructure and Network Security - Intrusion Detection and Prevention • Infrastructure and Network Security - Disaster Recovery • Corporate Security - Contingency Planning • Corporate Security - Vulnerability Disclosure
Processes for regularly testing, assessing and evaluating the effectiveness of technical and organizational measures in order to ensure the security of the processing	• Infrastructure and Network Security - Penetration Testing • Infrastructure and Network Security - Third Party Audit • Corporate Security - Risk Management • Corporate Security - Security Policies
Measures for user identification and authorization	• Infrastructure and Network Security - Logical Access Control • Application Security - Multi-factor Authentication • Application Security - Single Sign-On • Application Security - SAML 2.0 • Application Security - REST API Authentication (API Keys) • Application Security - Audit Controls
Measures for the protection of data during transmission	• Data Flow - Data Through System • Data Security and Privacy - Data Encryption
Measures for the protection of data during storage	• Data Security and Privacy - Data Encryption
Measures for ensuring physical security of locations at which personal data are processed	• Infrastructure and Network Security - Physical Access Control
Measures for ensuring events logging	• Application Security - Audit Controls
Measures for ensuring system configuration, including default configuration	• Application Security - Secure Application Development (Application Development Lifecycle) • Corporate Security - Risk Management • Corporate Security - Security Policies
Measures for internal IT and IT security governance and management	• Corporate Security - Risk Management • Corporate Security - Security Policies
Measures for certification/assurance of processes and products	• Infrastructure and Network Security - Third Party Audit • Corporate Security - Risk Management
Measures for ensuring data minimisation	• Data Security and Privacy - Data Retention • Data Security and Privacy - Data Removal
Measures for ensuring data quality	• Data Flow - Data Through System • Data Security and Privacy - Data Encryption • Application Security - Audit Controls
Measures for ensuring limited data retention	• Data Security and Privacy - Data Retention • Data Security and Privacy - Data Removal
Measures for ensuring accountability	• Corporate Security - Risk Management • Corporate Security - Security Policies
Measures for allowing data portability and ensuring erasure	• Data Security and Privacy - Data Encryption • Data Security and Privacy - Data Removal

Measures and documentation regarding US government's (confidential) Technical Safeguards 1

- Sentry uses encryption both in-transit and at-rest.
- As of the date of this DPA, Sentry has not received any national security orders of the type described in Paragraphs 150-152 of the judgment in the Court of Justice Case C-311/18, Data Protection Commissioner v Facebook Ireland Limited and Maximillian Schrems. No court has found Sentry to be the type of entity eligible to receive process under Section 702 of FISA ("702"). Our Statement communication service provider" within the meaning of 18 U.S.C. 2510(15) and therefore, at the of this document, we believe that without further action, data flows without further action, data flows from EU/EEA to Sentry in the US can lawfully continue.
- Sentry shall not comply with any request under FISA for bulk collection, or any request that identifies a specific target but relates to a targeted account identifiers is not identified as a specific "targeted selector" (an identifier that is unique to the target of surveillance, such as a telephone or facsimile number).
- Sentry shall use all available legal mechanisms to transfer data across through national security process that Sentry receives, as well as any non-US-law enforcement process that Sentry receives.
- Sentry shall take no action pursuant to U.S. Executive Order 12333.
- Sentry publishes a Transparency report.
- Sentry has been of notified by relevant legal materials for the personal data it has received, including national security orders and directives, which shall qualify as "relevant laws" issued under FISA Section 702.
- Sentry will notify Customer if Sentry can no longer comply with the Standard Contractual Clauses or these Additional Safeguards without being required to identify the specific provision with which it can no longer comply.

Cadence Service

Security Measures for the Cadence Service include the technical and organizational measures set forth below and in the current version of the Cadence Service Security Policy available at https://www.cadence.io/security/

Technical and Organizational Measures	Relevant Section(s) of Cadence Service Security Policy (if applicable)
Measures of pseudonymisation and encryption of personal data	Data is encrypted at rest. Data is encrypted in transit using Transport Layer Security (TLS) 1.2 or Secure Shell (SSH) encryption.
Measures for ensuring ongoing confidentiality, integrity, availability and resilience of processing systems and services	• Cadence Infrastructure Security • Cadence Data Security • Cadence Security Awareness
Measures for ensuring the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident	• Cadence Data Security • Cadence Vulnerability Testing / Pentesting
Processes for regularly testing, assessing and evaluating the effectiveness of technical and organizational measures in order to ensure the security of the processing	Sentry has a documented Business Resumption Plan which establishes procedures to be followed in the event of an information security incidents.
Measures for user identification and authorization	• Cadence Vulnerability Testing / Pentesting • Cadence Audit Logs
Measures for the protection of data during transmission	Cadence Data
Measures for the protection of data during storage	Data Centers are secured with Sentry's Cloud Infrastructure (CI) and infrastructure-assisted encryption.
Measures for ensuring physical security of locations at which personal data are processed	• Cadence Infrastructure Security • Cadence Code Security
Measures for ensuring events logging	Sentry uses SOFTI to provide cloud hosting services for its production environment. SOFTI's facilities, including the hardware and equipment hosting Sentry's data, provide the physical security, environmental controls, and incident management for the hardware and facilities for which responsibility of SOFTI. Additional information on SOFTI security measures can be found at https://softi.com/security/ and https://softi.com/security-faq/
Measures for ensuring system configuration, including default configuration	Sentry has established baseline configurations and security settings for hardening and securing.
Measures for internal IT and IT security governance and management	• Cadence Infrastructure Security • Cadence Security Compliance • Sentry has established baseline configurations and security settings for hardening and securing.
Measures for certification/assurance of processes and products	Cadence Security Compliance
Measures for ensuring data minimisation	Sentry retains receipt/processed coverage reports for 30 days. Options are available to customers to request data removal. Cadence Infrastructure Security
Measures for ensuring data quality	Sentry retains receipt/processed coverage reports for 30 days. Options are available to customers to request data removal.
Measures for ensuring limited data retention	• Cadence Data • Cadence Responsible Disclosure Policy
Measures for ensuring accountability	Customers can contact Sentry with any data security and privacy request data issues.
Measures for allowing data portability and ensuring erasure	• Sentry uses encryption both in-transit and at-rest. • As of the date of this DPA, Sentry has not received any national security orders of the type described in Paragraphs 150-152 of the judgment in the Court of Justice Case C-311/18, Data Protection Commissioner v Facebook Ireland Limited and Maximillian Schrems. No court has found Sentry to be the type of entity eligible to receive process under Section 702 of FISA ("702"). Our Statement communication service provider" within the meaning of 18 U.S.C. 2510(15) and therefore, at the of this document, we believe that without further action, data flows without further action, data flows from EU/EEA to Sentry in the US can lawfully continue. • Sentry shall not comply with any request under FISA for bulk collection, or any request that identifies a specific target but relates to a targeted account identifiers is not identified as a specific "targeted selector" (an identifier that is unique to the target of surveillance, such as a telephone or facsimile number). • Sentry shall use all available legal mechanisms to transfer data across through national security process that Sentry receives, as well as any non-US-law enforcement process that Sentry receives. • Sentry shall take no action pursuant to U.S. Executive Order 12333. • Sentry will notify Customer if Sentry can no longer comply with the Standard Contractual Clauses or these Additional Safeguards without being required to identify the specific provision with which it can no longer comply.

Schedule 3

Cross-Border Transfer Mechanisms

(1) **Data Privacy Framework**: Sentry complies with the Data Privacy Framework in relation to transfers of Personal Data from EU/EEA Europe to the United States. The parties agree that Sentry will use the Data Privacy Framework to lawfully receive European Personal Data in the United States and Sentry will ensure that any onward transfer to the same level of protection for such data as is required by the Data Privacy Framework Principles. If Sentry's Data Privacy Framework self-certification lapses or Sentry can no longer comply with an obligation under the Data Privacy Framework,

(2) **Standard Contractual Clauses**: In the event that the Data Privacy Framework is invalidated, or the Data Privacy Framework self-certification lapses, the transfer of European Personal Data from Customer to Sentry, then the parties agree to be subject to, abide by, and process such European Personal Data in compliance with the SCCs as follows:

(2.1) **EU Transfers**: If the GDPR applies to the European Personal Data,

(2.1)Module 2 (controller to Processor) applies when Customer is a Controller of European Personal Data and Sentry is a Processor of European Personal Data;

(2.1)Module 3 (Processor to Processor) applies when Customer is a Processor of European Personal Data (on behalf of a third party Controller) and Sentry is a Processor of European Personal Data;

(2.1)Clause 9 is the "Sub-processor" and Sentry is the "Data Importer";

(2.1)by entering into this DPA, each party is deemed to have signed the SCCs (including their Annexes) as of the date of this DPA; and

(2.1)in Ireland, Member, where applicable, the following applies:

(2.1)the optional docking clause in Clause 7 applies;

(2.1)Clause 9: option 2 will apply, the minimum time period for prior notice of Subprocessor changes shall be as set out in Section 2.3(d) and 2.3(f) of Subprocessor of this DPA; and Customer's right to object to Subprocessors will be exercised in accordance with Subprocessor changes in accordance with Section 2.3 (e) of Subprocessors of the DPA;

(2.1)Clause 11: the optional language does not apply;

(2.1)in Clause 13, all square brackets are removed with the text remaining;

(2.1)Clause 17: Option 1 will apply, and the SCCs will be governed by the law of the Republic of Ireland;

(2.1)in Clause 18(b), disputes will be resolved before the courts of the Republic of Ireland; and

(2.1)Sections 1 and 2 and Section 12.2(a) of Subprocessors of the DPA contain the information required in Annex 1 and 2 of the SCCs;

(2.2) **Transfers**: If the UK GDPR applies to the European Personal Data, the SCCs apply in accordance with paragraph 2.1 above and in addition, the UK Mandatory Clauses in the Approved Addendum, (V1.0.0) to be in effect as of January 2022, hereof (the "UK Addendum") and shall be incorporated by reference. (i) Tables 1 to 3 in Part 1 of the UK Addendum shall be populated with the information from Section 2.1(a) and Clause 7 and Section 12.2 (a) of Subprocessors of this DPA; (ii) Table 4 in Part 1 of the UK Addendum shall be deemed completed by selecting "Importer"; and (iii) any conflict between the SCCs and the UK Addendum shall be resolved in accordance with Section 10 and Section 11 of the UK Addendum.

(2.3) **Swiss Transfers**: If the Swiss DPA applies to the European Personal Data, the transfer of European Personal Data from Switzerland is governed by the SCCs in accordance with the following modifications: (i) references to "Regulation (EU) 2018/1725" shall be interpreted as references to the Swiss FADP; (ii) references to "EU", "Union" and "Member State" shall be replaced with "Switzerland"; (iii) the term "Member State" in accordance with Section 18 c shall be interpreted to mean "Switzerland"; and (iv) the term "Supervisory Authority" and "competent courts" shall be interpreted as references to the Swiss Federal Data Protection and Information Commissioner and the "competent Swiss courts", and (v) the SCCs will protect the data of legal entities in Switzerland and disputes shall be resolved before the competent Swiss courts.

(2.4) **Additional Provisions**: where the Standard Clauses, in its role the initiator of either party to conducted or restrict any part of the processes set forth in the SCCs and DPA proceedings, if and to the extent the SCCs conflict with any provision of the Agreement (including this DPA), the SCCs shall prevail to the extent of such conflict, and the parties agree that: (i) the Customer may exercise its right to audit Sentry under paragraphs 5.4(b) to (d), (i) the parties agree that for the purposes of the audits in accordance with the SCCs, we will inform you promptly and you will provide us with a reasonable period of time to carry out, one non-invasive, and reasonable audit per year with no agree what additional safeguards or measures, if any may be reasonably required to cure the non-compliance and will only be entitled to suspend the transfer of European Personal Data and/or terminate the affected parts of the Service if we have not cured such the non-compliance within the end of the cure period.

(3) **Alternative Transfer Solution**: With respect to European Personal Data, you agree that Sentry may implement an alternative data export solution (the "Alternative Transfer Solution") or recognized by the GDPR or Data Privacy Framework (and if applicable European Data Protection Legislation) for European Personal Data not described in this DPA ("Alternative Transfer Solution"), the Alternative Transfer Solution will apply instead of the transfer mechanisms described in this DPA (but only to the extent such Alternative Transfer Solution extends to the territories to which Personal Data is transferred), and if at request that you take any action (including, without limitation, execution of documents) reasonably requests to give full effect to that solution, you will promptly do so.

Schedule 4

Jurisdiction Specific Terms

1. **Europe**

1.1. additional information: You acknowledge that Sentry is required under European Data Protection Legislation to collect and maintain records of certain information, including, among other things, the name and contact detail of each Processor and/or Controller on whose behalf we are acting and, where applicable, of Controller's local representative and data protection officer; and (ii) to make such information available to the competent supervisory authorities. Accordingly, if European Data Protection Legislation applies to the processing of Personal Data, you will, when requested, provide that additional information to us, and ensure that the information is kept accurate and up to date.

2. **California**

2.1. Definitions. For purposes of Section 2 (California) of this Schedule 4:

2.1.1. "business purpose", "commercial purpose", "personal information", "sell", "service provider" and "share" have the meanings given to the CCPA;

2.1.2. The definition of "Data Subject" includes "consumer" as defined under the CCPA;

2.1.3. The definition of "Controller" includes "business" as defined under the CCPA;

2.1.4. The definition of "Processor" includes "service provider" as defined under the CCPA;

2.2. Obligations.

2.2.1. Customer is providing the Personal Data to Sentry under the Agreement for the limited and specific business purposes of providing the Service as described in Schedule 1 to this DPA and otherwise performing under the Agreement.

2.2.2. Sentry will comply with its applicable obligations under the CCPA and provide the same level of privacy protection as required by the CCPA.

2.2.3. Sentry acknowledges that Customer has the right to: (i) take reasonable and appropriate steps to ensure that Sentry uses the Personal Data that it receives from Customer in a manner consistent with Customer's obligations under the CCPA; (ii) notice from Sentry and receive additional and additional under Section 2.2 (Cooperation-Data Subject Rights) of this DPA regarding consumer requests to exercise rights under the CCPA and (iii) upon notice, take reasonable and appropriate steps to stop and remediate unauthorized use of Personal Data.

2.2.4 Sentry will notify Customer promptly after it makes a determination that it can no longer meet its obligations under the CCPA.

2.2.5 Sentry will not retain, use or disclose Personal Data: (i) for any purpose, including a commercial purpose, other than the business purposes described in Section 2.2.1 of this Section 2 (California) of Schedule 4 or (ii) outside of the direct business relationship between Sentry with Customer, except, in either case, where and to the extent permitted by the CCPA.

2.2.6 Sentry will not sell or share Personal Data received under the Agreement.

2.2.7 Sentry will not combine Personal Data with other personal information except to the extent a service provider is permitted to do so by the CCPA.

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